

Opinion of the Court

Punishment, according to Law.” *Ibid.* (emphasis added). The Clause both limits the consequences of an impeachment judgment and clarifies that notwithstanding such judgment, subsequent prosecution may proceed. By its own terms, the Clause does not address whether and on what conduct a President may be prosecuted if he was never impeached and convicted.

Historical evidence likewise lends little support to Trump’s position. For example, Justice Story reasoned that without the Clause’s clarification that “Indictment, Trial, Judgment and Punishment” may nevertheless follow Senate conviction, “it might be matter of extreme doubt, whether . . . a second trial for the same offence could be had, either after an acquittal, or a conviction in the court of impeachments.” 2 J. Story, *Commentaries on the Constitution of the United States* § 780, p. 251 (1833). James Wilson, who served on the Committee that drafted the Clause and later as a Justice of this Court, similarly concluded that acquittal of impeachment charges posed no bar to subsequent prosecution. See 2 *Documentary History of the Ratification of the Constitution* 492 (M. Jensen ed. 1976). And contrary to Trump’s contention, Alexander Hamilton did not disagree. The *Federalist Papers* on which Trump relies, see Brief for Petitioner 17–18, concerned the checks available against a *sitting* President. Hamilton noted that unlike “the King of Great-Britain,” the President “would be liable to be impeached” and “removed from office,” and “would afterwards be liable to prosecution and punishment.” The *Federalist* No. 69, at 463; see also *id.*, No. 77, at 520 (explaining that the President is “at all times liable to impeachment, trial, dismissal from office . . . and to the forfeiture of life and estate by subsequent prosecution”). Hamilton did not endorse or even consider whether the Impeachment Judgment Clause immunizes a *former* President from prosecution.

The implication of Trump’s theory is that a President who evades impeachment for one reason or another during his